

Although Thomas does not articulate a separate “wrongful termination” claim, she appears to be asserting such a claim. The District argues that she may not assert a “wrongful termination in violation of public policy”—aka *Tameny*—claim against a public entity such as the District. (See, e.g., (*Miklosy v. Regents of University of California* (2008) 44 Cal. 4th 876, 899.) While this is correct, it is not entirely clear the basis for her wrongful termination claim and whether it is based on statute. As it stands, there is no articulated cause of action for wrongful termination.

Leave to Amend

Leave to amend must be granted where there is a possibility of amendment. The District argues that no such possibility exists in this case. Given Thomas’s failure to engage with this case, it is difficult to determine whether (1) she filed but did not plead a government claim; (2) meant anything permissible by her “wrongful termination” language; and most importantly (3) intends to prosecute this case. Given her pro per status, the Court will permit her to amend the complaint but on a very short schedule. Leave to amend is granted but such amendment must be filed within 15 days of this hearing. If no such amendment is filed, the District may seek dismissal.

10. 9:00 AM CASE NUMBER: C25-02184

CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT

***HEARING ON MOTION IN RE: QUASH PLAINTIFF’S SERVICE OF SUMMONS**

FILED BY: TRI DELTA TRANSIT

TENTATIVE RULING:

Before the Court is Defendant Tri Delta Transit’s motion to quash Plaintiff Noorullah Tarin’s service of summons. The motion relates to Plaintiff’s personal injury complaint filed on August 1, 2025.

Defendant moves to quash pursuant to Code of Civil Procedure section 418.10 on the grounds that the Court lacks jurisdiction over Tri Delta Transit.

For the following reasons, the motion is **granted**.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a

general appearance by the defendant.” (Code Civ. Proc. § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four basis manners of service: (1) personal service, (2) ‘substitute service’ – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) Here, the Proof at issue indicates that service was made via personal service.

Analysis

Here, the proof of service indicates personal service on “Deanna Perry.” However, Deanna Perry is not Tri Delta Transit’s designated agent for service of process, nor a person otherwise authorized to accept service under the law. (Lashinsky Decl. at ¶ 6.) She is neither a clerk, secretary, president, presiding officer, or other head of Tri-Delta, and is not authorized by Tri-Delta to receive service of process. (*Ibid.*) Furthermore, the Proof of Service indicates that neither the Complaint nor any other required documents were served along with the Summons. (Lashinsky Decl., ¶ 6; Ex. 2.)

Service on public entities requires “delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body, or to a person authorized by the entity to receive service of process.” (Code Civ. Proc. § 416.50(a).)

Defendant has not been served in any of the three permissible manners of Code of Civil Procedure section 416.50(a). Additionally, the proof of service indicates service of the summons only. Service is complete when “a copy of the summons and of the complaint” is served by personal delivery. (Code Civ. Proc. § 415.10.)

The motion is **granted**. The Court quashes the service purportedly effectuated on August 2, 2025.

The Court does note that Defendant cited a non-existent case: “*Cummings v. Brantley Hale* (2014) 229 Cal.App.4th 538, 544 [“A summons must be accompanied by a copy of the complaint, and failure to serve both is improper service.”].” The Court can find no hint of this case anywhere. Defendant is admonished to check all citations. Further erroneous citations may result in sanctions.

11. 9:00 AM CASE NUMBER: C25-02184
CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: TRI DELTA TRANSIT
TENTATIVE RULING: